

**PERFORMANCE WORK STATEMENT (PWS)
SUBSTANCE USE DISORDERS TREATMENT PROGRAM (SUDTP)
COMMUNITY OPIATE SUBSTITUTION TREATMENT PROGRAM (COSTP)**

**PART 1
GENERAL INFORMATION**

1.1 Purpose

The Department of Veteran Affairs, Southern Arizona VA Health Care System (SAVAHCS) in Tucson, AZ ("VA") requires contractors to provide appropriate services as part of its Substance Use Disorders Treatment Program (SUDTP). The goal of the VA Community Opiate Substitution Treatment Program (COSTP) is to provide community-based, opiate substitution services to veterans with sufficient supportive services to meet the needs of those veterans.

1.2 Background

The Department of Veterans Affairs has established programs designed to provide comprehensive substance use disorder (SUD) treatment and rehabilitative services that improve the quality of life for veterans. VA SUD services provides veterans with detox services, residential treatment, intensive outpatient treatment, group therapy, individual therapy, psychiatric services, comprehensive medical care, and case management support. The COSTP is part of VA SUD services. VA staff will provide all case management, individual and group therapy, and psychiatric services to veterans being served. Contractor staff are expected to communicate information pertinent to veteran's treatment to Director of SUDTP or designee.

1.3 Description of Services

The contractor shall provide a Community Opiate Substitute Treatment Program in accordance with the terms and conditions stated herein, for the Department of Veterans Affairs, Southern Arizona VA Health Care System (SAVAHCS), 3601 S. 6th Avenue, Tucson, AZ 85723

1.4 Period of Performance:

The period of performance shall be for Base Year and Four (4) One (1)-Year Options.

1.5 Contractor Responsibilities

The Contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's quality control program is the means by which he assures himself that his work complies with the requirement of the contract. After acceptance of the quality control plan the Contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system.

1.6 Quality Assurance

The contractor personnel shall be subject to the same quality assurance standards in meeting or exceeding current recognized national standards as established by the Joint Commission, Commission on Accreditation of Rehabilitation Facilities. The contractor shall perform services in accordance with the ethical, professional, and technical standards of the healthcare industry as consistent with SAVAHCS policy, regulations and procedures. Personnel provided by the contractor shall be technically proficient in the skills necessary to fulfill the government's requirement, including the ability to speak, understand, read, and write English fluently.

1.7 Recognized Holidays

Contractor shall perform services on the following holidays. Contractor shall bear the cost of any overtime and/or holiday pay to which its personnel may be entitled performing work under this contract. These costs shall not be billed to nor reimbursed by the Government.

New Year's Day	January 1 st
Martin Luther King Jr.'s Birthday	3 rd Monday in January
President's Day	3 rd Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19 th
Independence Day	July 4 th
Labor Day	1 st Monday in September
Columbus Day	2 nd Monday in October
Veteran's Day	November 11 th
Thanksgiving Day	4 th Thursday in November
Christmas Day	December 25 th

1.8 Hours of Operation

The Contractor is responsible for conducting business 24 hours per day. The Contractor must maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

PART 2

DEFINITIONS & ACRONYMS

DEFINITIONS:

- 2.1 **CONTRACTOR.** A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

- 2.2 **CONTRACTING OFFICER.** A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

- 2.3 **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

- 2.4 **DEFECTIVE SERVICE.** A service output that does not meet the standard of performance associated with the Performance Work Statement.

- 2.5 **DELIVERABLE.** Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

- 2.6 **KEY PERSONNEL.** Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

- 2.7 **PHYSICAL SECURITY.** Actions that prevent the loss or damage of Government property.

- 2.8 **QUALITY ASSURANCE.** The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

- 2.9 **QUALITY ASSURANCE Surveillance Plan (QASP).** An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance.

- 2.10 **QUALITY CONTROL.** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

- 2.11 **SUBCONTRACTOR.** One that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

- 2.12 **SMART Recovery** is an international non-profit organization which provides assistance to individuals seeking abstinence from addictive behaviors.

2.13 WORK DAY. The number of hours per day the Contractor provides services in accordance with the contract.

2.14 VA MULTI-DISCIPLINARY TEAM. The multi-disciplinary VA team will consist of the VA Medical Center Contracting Officer's Representative (COR), a social worker, dietitian, registered nurse, a representative of the VA Police, and a Facilities Management Safety Officer, and other subject matter experts as determined necessary by the VA shall conduct a survey of the Contractor's facilities to be used to provide Veterans food, shelter, and therapeutic services to assure the facility provides quality care in a safe environment.

ACRONYMS:

AA/NA	Alcoholics Anonymous/Narcotics Anonymous
ACOR	Alternate Contracting Officer's Representative
ADA	American Disabilities Act
CARF	Commission on Accreditation of Rehabilitation Facilities
CC	Continuing Care Services
COR	Contracting Officer Representative
COSTP	Community Opiate Substitution Treatment Program
CPR	Cardiopulmonary Resuscitation
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
IOP	Intensive Outpatient Beds Services
JC	Joint Commission
LSC	Life Safety Codes
OCI	Organizational Conflict of Interest
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
SAVAHCS	Southern Arizona VA Health Care System
SUD	Substance Use Disorder
SUDTP	Substance Use Disorder Treatment Program
TE	Technical Exhibit

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

VA shall provide one Social Worker to support and coordinate opiate treatment of veterans.

The VA Social Worker shall conduct an evaluation following approval of a veteran by the Contractor for suitability for entrance in Opiate Substitution Treatment. This evaluation will include a treatment assessment and proposed treatment plan.

The VA will provide ongoing medical support and therapy for each veteran entered into the Opiate Substitution Treatment. The Contractor shall not be required or responsible for providing any counseling services to VA beneficiaries admitted into COSPT.

The VA SUDTP Program Manager shall approve all schedule changes involving the VA Social Worker.

The VA Social Worker shall be directly responsible only to the VA SUDTP Program Manager assigned by the VA Chief of Mental Health.

The SAVAHCS may provide the contractor with access to Protected Health Information. The contractor is subject to the provisions of the Privacy Act of 1974 as well as all applicable SAVAHCS policies. The contractor shall keep confident the contents of all medical documents entrusted to its care. Employees of the contractor shall not disclose to any unauthorized person, firm or corporation knowledge entrusted during performance of the contract, which relates to the following but not limited to:

- i. Names or SSN of Patient's
- ii. Names of physicians, nurses, or any other employee of the medical center;
- iii. The type or content of any dictated reports.

PART 4

CONTRACTOR FURNISHED ITEMS AND SERVICES

General: Contractor shall provide a freestanding facility or complex of facilities. Facility/ies must meet all applicable Federal, State, and local licensing for the operation of a facility in that/those location/s. Other facility requirements include but are not limited to compliance with the American Disabilities Act, referred to as architectural barriers act compliant.

Contractor shall provide office space dedicated solely for VA SUDTP staff use with sufficient room for appropriate office furniture.

Contractor shall provide a desk, at least a 4-drawer filing cabinet, executive office chair, other office furniture for Veteran use, space for computer use, access to high speed internet, and a dedicated telephone line in this office space dedicated for VA staff.

Contractor shall provide administration support, office supplies, and cooperative record keeping/support.

Contractor shall provide a group room sufficient to hold up to 16 individuals for the VA Social Worker to conduct required group sessions with VA patients. Contractor shall further provide furniture sufficient to seat 16 people and white board to enhance the group session experience.

Contractor shall ensure that the Administration of the Opiate Substitution Treatment program follows Arizona Administrative Code R9-20-1002.

Contractor shall hold and maintain the following licenses and certifications to be eligible for this contract:

- i. DEA License for Opiate Substitution.
- ii. Arizona State License far Methadone Treatment.
- iii. Accreditation from either the Joint Commission (JCAHO) or the Commission on Accreditation of Rehabilitation Facilities (CARF).

The Contractor's medical staff will be responsible for determining the dose level for new VA patients and will provide frequent evaluations according to national "Best Practice" guidelines to adjust methadone for each veteran.

The Contractor in conjunction with the Director of SUDTP will address any unanticipated issues that may have a major impact on services provided for veterans receiving treatment.

Personnel Policy:

The contractor shall be responsible for protecting its personnel furnishing services under this contract.

To carry out this responsibility, the contractor shall provide the following:

- iv. Worker's Compensation
- v. Professional Liability Insurance
- vi. Income Tax Withholding
- vii. Social Security
- viii. Annual TB skin test results

The Parties agree that such personnel shall not be considered SAVAHCS employees for any purpose and shall be considered employees of the contractor.

All contractor personnel shall observe the requirements imposed on sensitive data and information by law, Federal Regulations, SAVAHCS policy, Veterans Health Administration (VHA) policy and guidelines and the associated requirements to ensure appropriate screening of all personnel (e.g., Privacy Act of 1974" Public Law 93-579, the requirements of the FPM 731, Subchapter 2 and FPM 732, Subchapter 2 under E.O. 10450, etc)

Health Insurance Portability and Accountability Act of 1996 (HIPPA):

In accordance with 45 CFR 164.502(c), the Privacy Rule includes exceptions to the Business Associate standard. This contract and its requirements meet the following exception and does not require a Business Associate agreement in order for Covered Entity to disclose Protected Health Information to: a healthcare provider for treatment. Based on this exception, a Business Associate agreement is not required for this contract.

Billing:

Properly prepared invoices shall be submitted monthly in arrears. Billing rendered by the contractor to the SAVAHCS for services furnished to a SAVAHCS beneficiary under the terms of this contract shall be billings in full. Neither the beneficiary, his/her insurer, or any other third party shall be billed for services provided by the contractor.

PART 5

SPECIFIC TASKS

SPECIFIC TASKS: Contractor shall perform the following tasks:

Conduct a physical examination and an evaluation of all Veterans seeking admission into the COSTP to determine the appropriateness for Opiate Substitution treatment. Such physicals shall be completed by competent medical professional/s with appropriate licensure.

Provide the methadone necessary for each patient's daily dosing as per their treatment center protocol.

Perform urine toxicology screenings (UTS) up to and including once per week as requested by the VA Social Worker. These UTS's should measure the presence of methadone, oxycodone, other opiates, cocaine, cannabinoids, benzodiazepines, and amphetamines.

Breathalyze veterans for the presence of alcohol consumption as requested by the VA Social Worker. Breathalyzer shall be maintained according to manufacturer guidelines to ensure accuracy.

Submit a request to the VA SUDTP staff for approval or disapproval of the alternative drug/s recommendation if the Contractor's medical provider determines that methadone is not the appropriate medication for a veteran and one of the other substitute drugs is required.

Documentation of Services:

The Contractor shall generate a monthly report to be sent to the VA Director of SUDTP and the VA social worker on site that includes veterans' first/last name, full social security number, states veterans' current standing in the program; results of urine emit screens, and the veterans' dose of methadone.

The Contractor shall provide veterans in COSTP with a monthly Patient Satisfaction Survey. The survey must be approved by the VA Social Worker on site and the Director of SUDTP. Quarterly results shall be provided to the Director of SUDTP.